

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT			42a. RECEIVED BY (<i>Print</i>)	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		41c. DATE	42b. RECEIVED AT (<i>Location</i>)	
			42c. DATE REC'D (YY/MM/DD)	42d. TOTAL CONTAINERS

INDIVIDUAL PROJECT CALL ORDER

Solicitation Number: 12363N26Q0015

Individual Project Call Order Number

This Individual Project Call Order is issued under BPA number:
12363N_____

ISSUING OFFICE: (Forest Service Unit Name)

Call Order Date

USADA-FS Stewardship Contracting BR
1400 Independence Ave SW
MS-1138
Washington DC 20250-1138

Financial obligations and payments shall be processed via the Issuing Office.

PROJECT:

PROJECT NAME: Mosquito Fire Trail Brushing

Itemized payment items, quantities, prices and detailed project requirements are attached.

Solicitation Date:

Response Date/Time (close of business unless otherwise shown):

26MAR2026

29APR2026 by 4:00PM Pacific

OFFER:

Offeror Name (same as on parent BPA)

Offered by (Name, Title, Phone):

Date:

Authorized Signature:

This is a firm offer for 30 calendar days from the Response Date/Time.

AWARD:

ITEMS ACCEPTED:

TOTAL AMOUNT:

Authorized Signature

12363N26Q0015
MOSQUITO FIRE TRAIL BRUSHING
TAHOE NATIONAL FOREST

ITEM	DESCRIPTION	UNIT OF MEAS.	EST. QTY.	UNIT PRICE	TOTAL PRICE
0001AA	Loop 6- Mile .9—6.97- FR 88-11 to Junction with Western States Trail	Linear Foot	32,049	\$	\$
Option Items					
0001AB	Loop 6- Mile 00—0.4- Start of Loop 6 to FR 88-11	Linear Foot	2,112	\$	\$
0001AC	Loop 6- Mile 6.97—10- Junction with Western States Trail to Devils Thumb	Linear Foot	15,999	\$	\$
0001AD	Loop 6- Mile 10—12.05- Devils Thumb to Deadwood Road	Linear Foot	10,284	\$	\$
0001AE	Loop 6- Mile 12.05—14.84- Deadwood Road to FR 88-11-08	Linear Foot	14,732	\$	\$
0001AF	Loop 6- Mile 14.85—15.41- FR 88-11-08 to end of Loop 6	Linear Foot	3,010	\$	\$
0001AG	Western States Trail- Mile 2.75—5.22- Michigan Bluff to El Dorado Bridge	Linear Foot	13,042	\$	\$
0001AH	Western States Trail- Mile 5.22—8.6- El Dorado Bridge to Deadwood Cemetery	Linear Foot	17,847		
0001AI	Western States Trail- Mile 8.6—10.4 - Deadwood Cemetery to Devils Thumb	Linear Foot	9,504	\$	\$
0001AJ	Western States Trail- Mile 10.4—12.07 - Devils Thumb to Swinging Bridge	Linear Foot	8,818	\$	\$

SCHEDULE NOTES

- a) Quoters must submit prices for all Items in the Schedule of Items above.
- b) No bonds will be required for this project
- c) No certified payrolls will be required for this project.
- d) Contractors are encouraged to view the project locations before submitting quote responses.
- e) Questions are to be sent to John Swizdor, john.swizdor@usda.gov.

1. DESCRIPTION OF WORK:

Intent of contract will be to brush trails to standard for motorcycle, hiker, and equestrian use along Western States and Loop 6 Trails. Both trails are narrow steep canyon trails with a trail width of 18-24 inches. Work consists of brushing/cutting back vegetation along **14.91 miles** of Loop 6 (11E44) and **9.32 miles** (1-mile equals both sides of the trail) along the Western States (16E10) Trails on the American River Ranger District in Placer County California. **Total distance is 24.23 miles.** Trail locations are within Tahoe National Forest administered lands, nearest town is Foresthill, Michigan Bluff California. See attached maps for specific locations to be brushed.

Trail corridor shall be cut back 6 feet total (3 feet from both sides of trail) and 8 feet in height. Some Hazard tree mitigation may be requested and will be part of the contract package. Cut brush and stubs will be no taller than 2 inches off the ground and tree stumps will be flush with the ground. Trail tread shall be left open and free from debris. This work includes cutting back both sides of trail within the 2022 Mosquito Fire burn perimeter. Care must be taken along Western States Trail (WST) where historic rock retaining walls exist, sections of WST are on the National Register of Historic Places.

Work Notice

Post fire conditions from 2022 Mosquito Fire along these trail segments present an overgrown trail prism along narrow precipitous trails, existing volunteer and paid Forest Service crews are having difficulty maintaining these sections annually. These segments are within world renowned special use permitted events such as Western States 100-mile Endurance Run, Tevis Cup 100 mile Equestrian Ride, and Canyons 100 mile Run, event participants and recreating public are having trouble locating these trails, overgrown trail prism pose public safety concerns due to not being able to see footing along these rugged canyon trails.

2. PROJECT LOCATIONS:

Loop 6 Trail (11E44) and Western States Trail (16E10) Trails, Placer County, California, USA

Forks House Trailhead 39°08'11.0"N 120°41'45.6"W—From Auburn, CA follow Foresthill Road approximately 30.3 miles then turn right and follow signs to Loop 6 Trail. Other access points may be available.

Tahoe National Forest Motor Vehicle Use Map can be located at the following:
https://www.fs.usda.gov/sites/nfs/files/r05/tahoe/publication/MVUM_TNF_Sheet3_Front_AmericanRiver_2026.pdf

3. BONDING OR PAYMENT PROTECTION: NONE

4. PRICE RANGE: Not Applicable

5. SPECIFIC WORK REQUIREMENT:

Contractor shall provide all equipment, supplies, superintendence, materials, and labor necessary to complete the work in accordance with the specifications and drawings.

Work shall be conducted in accordance with the Standard Specifications for Construction of Trails and Trail Bridges on Forest Service Projects.

In addition to the specifications which are part of the base contract, the following specifications and drawings apply:

- a. Fire plan for construction and service contracts 01/01/2024
- b. "Standard Specifications for Construction of Trails and Trail Bridges on Forest Service Projects" are included in this solicitation by reference only. The requirements contained in these Specifications are hereby made part of this solicitation and any resultant contract.
https://www.fs.usda.gov/recreation/programs/trail-management/documents/plans/supporting_documents/Trail_Specifications.pdf

6. MEASUREMENT AND PAYMENT:

Measurement and payment for all work done on this project shall be in accordance with the Standard Specifications for Construction of Roads and Bridges on Federal Highways Projects, FP-14, and the attached Supplemental Project Specifications.
All invoices shall be processed through IPP.

Contractor shall provide all equipment, supplies, superintendence, materials, and labor necessary to complete the work in accordance with the specifications and drawings.

Work shall be conducted in accordance with the Standard Specifications for Construction of Roads and Bridges on Federal Highway Projects, FP-14 as supplemented by the attached Forest Service Supplemental Specifications, the attached drawings, and the FAR Clauses listed in the parent contract.

Warning signs and temporary traffic control shall be provided and placed in accordance with applicable standards while work is in progress.

7. PROSECUTION OF WORK:

SPECIAL CONDITIONS AFFECTING THE WORK

- A. **Physical Conditions.** The indications of physical conditions on the drawings and in the specifications are the result of site investigations and surveys performed by the Government.
- B. **Weather.** Average low temperatures at the project site range from temperatures of less than 30 °F in the

winter months to around 50 °F in the summer months, while average high temperatures range from 60 °F in winter to around 100 °F in the summer. The average precipitation at the project site varies from less than 1 inch per month during the summer months to around 4 inches per month during the winter months. Snowstorms and freezing temperatures can occur in the higher elevations of the Sierra Nevada Mountains at any time, and may cause a temporary shutdown of work. Icy conditions on local roads and highways can persist during the fall, winter and spring. Highway curves in shaded areas will remain covered with ice or frost for weeks.

- C. **Work Hours.** Work hours are from 7:00 am to 5:00 pm Monday through Friday. Weekend equipment work is not allowed at any time during the Work unless approved in writing by the CO. Dogs and pets are not allowed on the project site at any time.
- D. **Highway Permits.** Contractor is responsible for securing any overload or over-size width limit permits required for the transport of materials or equipment to the project site. The Contractor is responsible for conducting a thorough reconnaissance of all routes leading to the site.
- E. **Toilets.** Toilet or shower facilities may not be available on site. Contractor would need to provide appropriate facilities as required.
- F. **Camping.** Contractor may use a self-contained travel trailer or recreational vehicle to camp on National Forest System lands near the project sites subject to the approval of the Contracting Officer. All waste material must be transported off-site to a station equipped to handle such waste.
- G. **Safety, Emergency Communications and Evacuation.** Contractor is responsible for the safety of the Contractor's employees including Subcontractors employees, Government employees associated with the project, and any visitors to the site both Government and private. The Contractor shall submit a project safety plan to the Contracting Officer for review prior to commencement of Work. The project safety plan shall comply with the appropriate California OSHA and Federal OSHA rules and regulations and must include a medical evacuation and emergency communications plan.
- H. **Security.** Contractor is responsible for the Contractor's equipment and materials supplied to the site. All equipment not equipped with a key lock system shall be secured in such a manner as to make it inoperable to the average person at the end of each working day. All hand tools and other equipment shall be secured at the end of each working day. On Fridays all construction debris, trash, and refuse shall be properly stored in dumpsters or trash bins or removed from the site.
- I. **Burning Permits.** Contractor is subject to all rules and regulations governing the onsite burning of slash and other debris. Contractor shall obtain a burning permit from the jurisdiction having control over burning. The Contractor shall comply with Fire Plan for Construction and Service Contracts included in the Contract.
- J. **Protection of Resources.** Contractor shall thoroughly clean all equipment prior to delivery to the project site to remove weeds, seeds, mud, grease, and oil buildup from all equipment surfaces. Spills of petroleum products and other hazardous substances shall be reported, contained, and removed in accordance with all applicable rules, regulations, and laws. Contractor shall submit a project spill response plan at the pre-work meeting for review by the Contracting Officer.

- K. **Equipment Cleaning.** Unless the entire project area is already infected with noxious weeds, the contractor shall ensure that prior to moving on to another part of the project area all off-road equipment, which last operated in areas known by Forest Service to be infected with noxious weeds, is free of soil, seeds, vegetative matter, or other debris that could contain or hold seeds. Contractor shall certify in writing that off-road equipment is free of noxious weeds prior to each start-up of operations and for subsequent moves of equipment to other project areas. Measures taken to ensure that off-road equipment is free of noxious weeds will be identified. "Off-road equipment" includes all equipment operating off of paved roadways. A Current list of noxious weeds of concern to Forest Service is available at the Forest Supervisor's office. Contractor shall clean off-road equipment prior to moving between project areas with known infestations with noxious weeds and other project areas, if any, which are free of such weeds. Project area maps show areas known by Forest Service that contain specific noxious weeds species of concern. Contractor shall employ whatever cleaning methods are necessary to ensure that off-road equipment is free of noxious weeds. Equipment shall be considered free of soil, seeds, and other such debris when a visual inspection does not disclose such material. Disassembly of equipment components or specialized inspection tools is not required. Contractor shall notify Forest Service at least 24 hours prior to beginning of work in area designated as a noxious weed area, unless otherwise agreed. Notification shall include the location of the equipment's most recent operations. If the prior location of the off-road equipment cannot be identified, forest service may assume that it was infested with noxious weed seeds. Upon request of Forest Service, Contractor must arrange for forest Service to inspect each piece of off-road equipment prior to it being placed into service. If Contractor desires to clean off-road equipment on national forest land, such as at the end of a project or prior to moving to a new unit that is free from noxious weeds, Contractor and Forest Service shall agree on methods of cleaning, locations for the cleaning, and control of off-site impacts, if any. New infestations of noxious weeds, of concern to Forest Service and identified by either Contractor or Forest Service, within the project area or on the haul route, shall be promptly reported to the other party.

8. COMMENCEMENT PROSECUTION, AND COMPLETION OF WORK (FAR 52.211-10) (APR 1984)

The Contractor shall be required to (a) commence work under this contract within 10 calendar days after the date agreed upon on the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than June 20, 2027. The time stated for completion shall include final cleanup of the premises.

Work is estimated to begin March 1, 2027.

9. GOVERNMENT FURNISHED PROPERTY: N/A

10. SALVAGE RIGHTS

No Contractor salvage rights exist under the contract unless specifically provided elsewhere herein.

11. PHYSICAL DATA

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by the Forest Service. Visual Site surveys were performed.

Safety

In addition to the hazards listed in the original contract, the following inherently hazardous conditions may exist on the job site: working under heavy equipment, working in fast running water. Contractor shall submit a job-specific safety plan that addresses, at a minimum, the hazards listed in the parent contract and the two additional hazards listed above. The safety plan shall be submitted to the Contracting Officer no later than at the post-award meeting.

12. CONTRACTOR'S REPRESENTATION & RESPONSIBILITY

A. In making formal request for substitution the Contractor represents he/she:

1. Have investigated proposed product and determined that it is equal to or superior in all respects to that originally specified.
2. Will provide same warranties and bond for substitute as for originally specified product.
3. Will coordinate installation of accepted substitution into the work and will make such changes as may be required for the work to be complete in all respects.
4. Will waive claims for additional costs caused by substitution, which may subsequently become apparent.
5. Cost data is complete and includes related costs under the contract, but not:
 - a. Costs under separate contracts.
 - b. Contracting Officer costs for redesign or revision of contract documents.

B. The Contractor assumes full responsibility that the substitution and/or alternate items or procedures proposed will meet the job requirements.

C. The Contractor is solely responsible for the cost of redesign and modifications to this and other parts of the work caused by the substitutions or alternates furnished.

13. CONTROL OF MATERIAL

Rights In and Use of Materials

(a) The Contractor, with the written approval of the Contracting Officer, may use on the project suitable stone, gravel, and sand, or other material found in the excavation. Payment will be made both for the excavation of such materials at the corresponding contract unit price and for the pay items for which the excavated material is used. The Contractor shall replace without additional compensation sufficient suitable materials to complete the portion of the work which was originally contemplated to be constructed with such material.

(b) Materials produced or processed from Government lands in excess of the quantities required for performance of this contract are the property of the Government. The Government is not obligated to reimburse the Contractor for the cost of their production.

Material Sources

(a) Designated Sources - Sources of local materials are designated on the drawings. The Government assumes responsibility for the quality and quantity of material in the source. The Contractor shall determine the equipment and work required to produce the specified product.

The Contractor shall utilize all suitable material in the source. The designation of source will include the rights of the Contractor to use certain area(s) for plant site, stockpiles, and haul roads.

When materials are subject to weight measurement, the weight/volume relationship used for determination of designed quantities will be shown on the Drawings.

(b) Contractor Furnished Sources - When the material sources are not designated as provided above or the Contractor elects not to use designated sources, the Contractor shall be responsible for providing the specified product with no adjustment in contract price, unless weight/volume relationship differences between designated source material and Contractor furnished source material result in financial disadvantage to the Government. Quality Testing shall be the responsibility of the Contractor. Test results shall be furnished to the Contracting Officer.

14. SITE VISIT

(a) **There will not be a formal site visit put on by the forest.** Contractors will be afforded the opportunity to visit the site throughout the duration of the solicitation on their own. Prior to visiting the site, the contractor shall contact the COR and notify them via email. If there are any questions, feel free to reach out to the COR, Matthew Brownlee, matthew.brownlee2@usda.gov.

15. POST AWARD CONFERENCE (AGAR 452.215-73) (NOV 1996)

A post award conference with the successful offeror is required. The meeting will be scheduled within ten days after the date of contract award and held before work begins. The conference will be held electronically or by other agreed upon means.

16. CONTRACTING OFFICER'S REPRESENTATIVE:

The Contracting Officer designates the Contracting Officer's Representative(s) (COR). The COR is responsible for administering the performance of work under this contract. In no event, however, will any understanding, agreement, modification, change order, or other matter deviating from the terms of this contract be effective or binding upon the Government unless formalized by proper contractual documents executed by the Contracting Officer prior to completion of the contract.

The Contracting Officer should be informed as soon as possible of any actions or inactions by the Contractor or the Government which will change the required delivery or completion times stated in the contract, and the contract will be modified accordingly. (This does not apply to individual task assignments which were issued by the COR provided they do not affect the delivery schedule or performance period stated in the contract.)

On all matters that pertain to the contract terms, the Contractor must communicate with the Contracting Officer. Whenever, in the opinion of the Contractor, the COR requests effort outside the scope of the contract, the Contractor should so advise the COR. If the COR persists, the Contracting Officer should be notified immediately, preferably in writing if time permits.

COR NAME: Matthew Brownlee
COR EMAIL: matthew.brownlee2@usda.gov

17. LIST OF ATTACHMENTS

The following attachments are made a part of this solicitation and any resultant contract.

Title
ATT 1 Mosquito Fire Trails Project Description
ATT 2 Mosquito Fire Trail Brushing Plans 2026
ATT 3 Mosquito Fire Western States Trail Map
ATT 4 Trail Photo
ATT 5 Wage Determination 1977-0727 REV 79 03DEC2025 Forestry Statewide

18. EVALUATION CRITERIA:

SUBMISSION INSTRUCTIONS

General

Proposals shall be submitted in two parts: a technical proposal and a price proposal. Each part shall be separate and complete in itself so that evaluation of one may be accomplished independently of the other. The price proposal shall be submitted with the solicitation forms.

Offerors are cautioned that sufficient and detailed information must be presented in their proposals to enable the Government to evaluate their proposals fully in accordance with the evaluation and award criteria contained

herein. The Government is not obligated to ask for additional information and in the absence of appropriate information, the proposal will be rated deficient.

WHAT TO SUBMIT.

Price Proposal

A completed schedule of items with pricing information completes this requirement.

Technical Proposal

The technical proposal shall include, at a minimum, the information identified below in sufficient detail to allow for evaluation based on the criteria identified in Section M Evaluation Criteria. It is strongly suggested that offerors organize their technical proposal with individual sections that address each of the following evaluation criteria:

- i) Factor 1. Technical Approach to Performing the Work (Not to Exceed 5 pages): The Government will evaluate the offeror's technical approach deemed relevant to the requirements of this proposal. Technical approach is a measure of the degree to which the vendor presents their understanding of the requirements and the challenges of this project as well as their ability to mitigate those challenges to complete the project as specified. The offeror's narrative response to the technical approach should be in as much detail as the offeror considers necessary to fully explain their proposed means and methods of completion, including subcontractors, key personnel, schedule, and quality control. The technical approach should reflect a clear understanding of the nature of the project, level of effort required, and acceptable level of quality.
- ii) Factor 2. Past Performance: submit a list of relevant past work similar in nature and scope, including **experience working around steep cliffs in close proximity to trail work**, that the contractor has performed with the past 5 years along with contact information so the government may contact prior customers to evaluate past performance. Information should include the project name, location, description of the work, dollar value and name/phone/email of project owner representative. **(Not to exceed 5 pages).**

The price and technical proposals, shall be separate documents (Microsoft Word, Microsoft Excel, or Adobe PDF). It is the vendor's responsibility to ensure delivery of all required documents by the date and time set for receipt of offers.

Contact the Contracting Officer by e-mail if you do not understand any part of these instructions.
john.swizdor@usda.gov.

Send quote submission to John Swizdor at john.swizdor@usda.gov by 29APR2026 at 1600 Pacific Time.

EVALUATION OF OFFERS

The Government will determine **best overall value** on the basis of the factors described below.

Failure to address **all** items requested by the Government will be cause to consider proposals non-responsive and not eligible for award.

(a) Proposals will be evaluated on the basis that the following factors: Technical Approach and Relevant Past Performance are considered equal in order of importance.

1. **Technical Approach**
2. **Relevant Past Performance**
3. **Price**

1. Technical Approach: A firm's Technical Approach (**HOW** the work will be done) will be evaluated based on the following sub-factors: **(a) Project Schedule**- consists of a detailed timeline of how the project will be completed within allotted contract time; **(b) Sub-Contractors** that perform key elements of work; **(c) Equipment** - a description of equipment planned for use on this project.

2. Relevant Past Performance – Past performance is a measure of the degree to which an offeror, as an organization, has satisfied its customers. The Government will inquire about the following elements which are **considered equal in importance** in relation to each other for evaluation purposes:

- a) **Timeliness** – Compliance with performance schedules, project milestones; realistic, updated progress schedules, timeliness in submitting administrative paperwork (invoices/payrolls, modifications, bonds, schedules, plans, material certifications), and paying subcontractors on time.
or to make improvements to plans & specifications; did completed project meet expectations in relation to quality and cost.
- b) **Cost Control** – Assess the offeror's effectiveness in forecasting, managing, and controlling contract costs where task or contract sizing is based upon offeror-provided person hour estimates, the relationship of these estimates to ultimate task cost effort should be assessed. In addition, the extent to which the offeror demonstrates a sense of cost responsibility, through the efficient use of resources in each work effort should be assessed.
- c) **Management** – Assess the integration and coordination of all activity needed to execute the contract or order. Specifically the timelines, completeness, quality of problem identification, corrective action plans, proposal submittals, the contractors history of reasonable and cooperative behavior (to include timely identification of issues in controversy), customer satisfaction, timely award and management of subcontracts.

Assessment of the Offeror's past performance will be one means of evaluating the credibility of the Offeror's proposal. Each offeror will be evaluated on their performance under existing and prior contracts of similar nature. Evaluation information will be obtained from the references listed in the proposal and other customers known to the Government, and others who may have useful and relevant information. The Government will focus on information that demonstrates quality of performance relative to the size and complexity of the procurement under consideration.

Offerors with past performance data will be evaluated in the same manner as all other evaluation factors; however, those offerors with no past performance data will be treated as an unknown performance risk and neither be evaluated favorably nor unfavorably.

3. Cost or Price: When compared to cost, the technical approach and past performance are considered to be approximately equal. The offeror's Price Proposal shall consist of the individual items and the total price as offered in the Schedule of Items.

AWARD STATEMENT

- 1) Award will be made to that offeror (1) whose proposal is technically acceptable and (2) whose technical/cost relationship is the most advantageous to the Government.
- 2) The Government may award a contract on the basis of initial offers received, without discussions. Therefore, each initial offer should contain the offeror's best terms from a cost or price and technical standpoint. However, if considered necessary by the Contracting Officer, discussions will be conducted with only those offerors determined to have a reasonable chance for award based on initial evaluation of proposals submitted by the Technical Review Board.
- 3) The Government reserves the right to make an award to other than the lowest priced offeror or to the offeror with the highest non-price evaluation if the Contracting Officer determines that to do so would result in the greatest value to the Government.
- 4) Contractors must submit pricing on all items including optional items to be considered for award. The Government reserves the right to make cost/technical trade-offs that are in the best interest and to the advantage of the Government.
- 5) The proposal evaluation will be weighted and scored utilizing the Adjectival Rating System as follows: Outstanding, Satisfactory, Marginal, Unacceptable, If in the best interest of the government a + or – may be giving to a firm. Example: Satisfactory +, Outstanding -.

Commercial Provisions and Clauses
RFO Part 12

Provisions

In accordance with [FAR 12.205](#), include the following provisions, if applicable based on the provision prescription:

Number	Title	Prescription
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions	Solicitations expected to exceed \$200,000.
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation	In all solicitations, except as provided in paragraph (a)(2) of this section; and (2) Not insert the provision in solicitations for personal services contracts with individuals if the individual will perform all services personally (rather than through contractor or subcontractor employees).
52.204-7	System for Award Management—Registration	When offerors are required to be registered in SAM.
52.212-1	Instructions to Offerors—Commercial Products and Commercial Services	All solicitations.
52.212-2	Evaluation—Commercial Products and Commercial Services	When using the procedures in 12.201-2 (over \$9M). This provision may also be used when using tradeoffs using 12.201-1 (\$9M and under).
52.217-5	Evaluation of Options	Except when it is determined in accordance with FAR 17.206(b) not to be in the Government’s best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).
52.222-52	Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification	In solicitations that— (A) Include the clause at 52.222-41, Service Contract Labor Standards, and (B) The contract may be exempt from the Service Contract Labor Standards statute in accordance with 22.1002-1(f).

Commercial Provisions and Clauses
RFO Part 12

Number	Title	Prescription
52.240-90	Security Prohibitions and Exclusions Representations and Certifications	In all solicitations.

Note: The solicitation provision at 52.204-90 is used in lieu of the solicitation provision at 52.204-7 if the solicitation will not require offerors to be registered in the System for Award Management (see policy at 4.203-2). When 52.204-90 is used, also include the individual provisions listed in paragraph (c)(1) of 52.204-7, System for Award Management—Registration, in the solicitation as applicable based on the provision prescriptions (see 4.208(c)).

Clauses

In accordance with [FAR 12.205](#), include the clauses in the following table in solicitations and contracts, if applicable based on the clause prescription:

Number	Title	Prescription
52.203-17	Contractor Employee Whistleblower Rights	All solicitations and contracts, except solicitations and contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community (see 3.900(a)).
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	All solicitations and resulting contracts, other than personal services contracts with individuals.
52.204-13	System for Award Management—Maintenance	When offerors are required to be registered in SAM.
52.209-6	Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	Solicitations and contracts where the contract value exceeds \$45,000.
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	Each solicitation and contract for the acquisition of products or services (including construction).
52.212-4	Terms and Conditions—Commercial Products and Commercial Services	In all Solicitations.

Commercial Provisions and Clauses
RFO Part 12

Number	Title	Prescription
52.219-6	Notice of Total Small Business Set-Aside	Solicitations involving total small business set-asides.
52.219-16	Liquidated Damages—Subcontracting Plan	In contracts containing the clause at 52.219-9, Small Business Subcontracting Plan, with its Alternate IV.
52.222-3	Convict Labor	In solicitations and contracts above the micro-purchase threshold, when the contract will be performed in the United States, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, or the U.S. Virgin Islands; unless— (a) The contract will be subject to 41 U.S.C. chapter 65 (see subpart 22.6 and 22.602), which contains a separate prohibition against the employment of convict labor; (b) The supplies or services are to be purchased from Federal Prison Industries, Inc. (see subpart 8.6); or (c) The acquisition involves the purchase, from any State prison, of finished supplies that may be secured in the open market or from existing stocks, as distinguished from supplies requiring special fabrication.
52.222-35	Equal Opportunity for Veterans	Solicitations and contracts if the expected value is \$150,000 or more, except when— (i) Work is performed outside the United States by employees recruited outside the United States; or (ii) The Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, has waived, in accordance with 22.1302-3(a) or the head of the agency has waived, in accordance with 22.1302-3(b), all of the terms of the clause.

Commercial Provisions and Clauses
RFO Part 12

Number	Title	Prescription
52.222-36	Equal Opportunity for Workers with Disabilities	Solicitations and contracts that exceed or are expected to exceed \$15,000, except when— (i) Both the performance of the work and the recruitment of workers will occur outside the United States, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, and Wake Island; or (ii) The Director of OFCCP or agency head has waived, in accordance with 22.1401-3(a) or (b) all the terms of the clause.
52.222-37	Employment Reports on Veterans	Solicitations and contracts containing the clause at 52.222-35, Equal Opportunity for Veterans.

Commercial Provisions and Clauses
RFO Part 12

Number	Title	Prescription
52.222-41	Service Contract Labor Standards	In solicitations and contracts (except as provided in paragraph (b)(2) of this subsection) if the contract is subject to the Service Contract Labor Standards statute and is— (i) Over \$2,500; or (ii) For an indefinite dollar amount and the contracting officer does not know in advance that the contract amount will be \$2,500 or less. (2) The contracting officer must not insert the clause at 52.222-41 (or any of the associated Service Contract Labor Standards statute clauses as prescribed in this subsection for possible use when 52.222-41 applies) in the resultant contract if— (i) The solicitation includes the provision at— (A) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Certification; or (B) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Certification; and (ii) The contracting officer has made the determination, in accordance with paragraphs (e)(3) or (f)(3) of subsection 22.1002-1, that the Service Contract Labor Standards statute does not apply to the contract. (In such case, insert the clause at 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements, or 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements, in the contract, in accordance with the prescription at paragraph (e)(2)(ii) or (e)(4)(ii) of this subsection)
52.222-42	Statement of Equivalent Rates for Federal Hires	Solicitations and contracts if the contract amount is expected to be over \$2,500 and the Service Contract Labor Standards statute is applicable.
52.222-50	Combating Trafficking in Persons	In all solicitations and contracts.
52.222-54	Employment Eligibility Verification	All solicitations and contracts that exceed \$150,000, except those that—

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Number	Title	Prescription
		(a) Are only for work that will be performed outside the United States; (b) Are for a period of performance of less than 120 days; or (c) Are only for— (1) Commercially available off-the-shelf items; (2) Items that would be COTS items, but for minor modifications (as defined at paragraph (3)(ii) of definition of “commercial product” at 2.101; (3) Items that would be COTS items if they were not bulk cargo; or (4) Commercial services that are— (i) Part of the purchase of a COTS item (or an item that would be a COTS item, but for minor modifications); (ii) Performed by the COTS provider; and (iii) Are normally provided for that COTS item.
52.222-62	Paid Sick Leave Under Executive Order 13706	Solicitations and contracts that include the clause at 52.222-6, Construction Wage Rate Requirements, or 52.222-41, Service Contract Labor Standards, where work is to be performed, in whole or in part, in the United States (the 50 States and the District of Columbia).
52.223-23	Sustainable Products and Services	Solicitations and contracts unless a written justification or exception (see 23.103(b) and 23.105, respectively) covers the entire acquisition.
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	All solicitations and contracts
52.232-30	Installment Payments of Commercial Products and Commercial Services	In solicitations and contracts in lieu of constructing a specific clause in accordance with paragraphs (b) through (e) of this section, if the contract action qualifies under the criteria at 32.202-1(b) and installment payments for the item are either customary or are authorized in accordance with agency procedures.
52.232-33	Payment by Electronic Funds Transfer—System for Award Management	Solicitations and contracts that include the provision at 52.204-7, System for Award Management, or an agency clause that requires a contractor to be registered in

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Number	Title	Prescription
		SAM and maintain registration until final payment, unless— (i) Payment will be made through a third party arrangement (<i>see</i> 13.301 and paragraph (d) of this section); or (ii) An exception listed in 32.1103(a) through (i) applies.
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	All solicitations and contracts.
52.233-3	Protest After Award	All solicitations and contracts.
52.233-4	Applicable Law for Breach of Contract Claim	All solicitations and contracts.
52.240-91	Security Prohibitions and Exclusions	All solicitations and contracts.
52.244-6	Subcontracts for Commercial Products and Commercial Services	All solicitations and contracts.

